

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fendley	Team: Squad #05	CCRB Case #: 201501765	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 03/09/2015 6:00 PM	Location of Incident: Snediker Avenue and Blake Avenue	18 Mo. SOL 9/9/2016	Precinct: 75
Date/Time CV Reported Thu, 03/12/2015 8:49 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 03/12/2015 8:49 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Justin Delmonico	00390	948867	075 PCT
2. An officer			075 PCT
3. SSA Gary Calhoun	00622	903537	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SSA Gary Calhoun	Discourtesy: Sgt. Gary Calhoun spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . SSA Gary Calhoun	Force: Sgt. Gary Calhoun fired his gun at § 87(2)(b)	B . Unfounded
C . An officer	Force: An officer used physical force against § 87(2)(b)	C . Officer(s) Unidentified
D . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b)	D . Officer(s) Unidentified
E . POM Justin Delmonico	Force: PO Justin Delmonico struck § 87(2)(b) with a baton.	E . Alleged Victim Uncooperative

Case Summary

On March 12, 2015, § 87(2)(b) filed this complaint via the CCRB's Call Processing System.

On March 9, 2015, at approximately 6:00 p.m., § 87(2)(b) and his brother, § 87(2)(b) were apprehended by PO Justin Delmonico and Sgt. Gary Calhoun, both of the 75th Precinct, in the vicinity of Snediker Avenue and Blake Avenue in Brooklyn after they were observed participating in a drug transaction. Sgt. Calhoun and PO Delmonico told both § 87(2)(b) and § 87(2)(b) to get onto the ground. § 87(2)(b) fled northbound on Snediker Avenue, but § 87(2)(b) complied and got onto the ground. § 87(2)(b) alleged that while he was on the ground, Sgt. Calhoun told him to "shut the fuck up" (**Allegation A**). § 87(2)(b) got up off of the ground at that point and attempted to flee from Sgt. Calhoun. He alleged that Sgt. Calhoun drew his gun and fired one shot at him (**Allegation B**). § 87(2)(b) voluntarily got back onto the ground at that point and he was approached by numerous unknown officers who had responded to the location. § 87(2)(b) alleged that an officer who he did not see stomped on the top, back part of his head twice in a row, causing his left cheekbone to hit the ground twice (**Allegation C**). § 87(2)(b) also alleged that during that time, an officer who he did not see called him a "motherfucker" (**Allegation D**). § 87(2)(b) was handcuffed and was transported to the 75th Precinct stationhouse and then to Brooklyn Central Booking, where he encountered § 87(2)(b) again. § 87(2)(b) told § 87(2)(b) that PO Delmonico had struck his leg with a baton and § 87(2)(b) observed swelling to § 87(2)(b) right leg (**Allegation E**). § 87(2)(b) was charged with § 87(2)(b) as a result of this incident (Board Review 1).

Mediation, Civil and Criminal Histories

This case was not suitable for mediation due to the arrests and pending trials of § 87(2)(b) and § 87(2)(b) as a result of this incident. A notice of claim is pending from the New York City Comptroller's Office because the 90-day filing expiration had not passed upon the submission of this closing report. Upon receipt, the notice of claim results will be added to the case file. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

§ 87(2)(b) has one prior CCRB complaint. § 87(2)(b)

§ 87(2)(b) Sgt. Calhoun has been a member of the service for twenty-one years and he has thirteen prior substantiated allegations against him in a total of four cases. In CCRB case 9700541, allegations of a push, gun pointed, force 'other,' threat of force, discourtesy and offensive language were substantiated against Sgt. Calhoun and he received charges as a result. In CCRB case 9802616, allegations of a push and an arrest were substantiated against Sgt. Calhoun and he received charges as a result. In CCRB case 200901903, allegations of a vehicle stop, vehicle search, frisk

and search of person were substantiated against Sgt. Calhoun and he received command discipline B as a result. In CCRB case 201304366, an allegation of a vehicle search was substantiated against Sgt. Calhoun and he received charges as a result. PO Delmonico has been a member of the service for four years and he has no prior substantiated allegations against him.

§ 87(2)(g)

Investigative Findings and Recommendations

Allegations Not Pledged

§ 87(2)(g)

Allegation A – Discourtesy: Sgt. Gary Calhoun spoke rudely to

§ 87(2)(b)

§ 87(2)(b) said that he and § 87(2)(b) parked their vehicle on Snediker Avenue and walked away from it. A police vehicle pulled up to them and PO Delmonico and Sgt. Calhoun told the § 87(2)(b) to get onto the ground. § 87(2)(b) fled and PO Delmonico ran after him. § 87(2)(b) complied and got onto the ground. § 87(2)(b) said that he felt Sgt. Calhoun's knee on his lower back and told Sgt. Calhoun that qualified as unnecessary force. He alleged that Sgt. Calhoun replied by telling him to "shut the fuck up."

Sgt. Calhoun denied telling § 87(2)(b) to "shut the fuck up." Further, Sgt. Calhoun and PO Delmonico both denied that Sgt. Calhoun used any profanity at all throughout the entire incident. There were no other civilians or officers present at the beginning of this incident.

§ 87(2)(g)

Therefore, it is recommended that

Allegation A be closed as **unsubstantiated**.

Allegation B – Force: Sgt. Gary Calhoun fired his gun at

§ 87(2)(b)

§ 87(2)(b) said that he initially complied with Sgt. Calhoun's orders to get onto the ground. However, he got angry after the alleged discourtesy and decided to get up and attempt to flee the location. He ran northbound on Snediker Avenue, towards Blake Avenue. § 87(2)(b) alleged that he was located about eight to nine car lengths from Sgt. Calhoun when he heard a gunshot. He said that he knew Sgt. Calhoun had fired a gun at him because Sgt. Calhoun was the only person behind him and he saw the wind tunnel from the bullet fly past his right upper arm. § 87(2)(b) did not provide a statement regarding this incident and fieldwork was negative for any witnesses.

Sgt. Calhoun and PO Delmonico both denied that a gun was fired by anyone at the incident location. Sgt. Calhoun said that he did fire his taser at § 87(2)(b) when § 87(2)(b) attempted to flee the location. However, Sgt. Calhoun missed and the taser never actually hit § 87(2)(b) § 87(2)(g)

Further, there were no firearm discharge reports filed regarding the incident, but there was a Less Lethal/ Rescue Equipment Use Report filed by Sgt. Calhoun confirming that a taser was used (Board Review 4).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unfounded**.

Allegation C – Force: An officer used physical force against § 87(2)(b)

Allegation D – Discourtesy: An officer spoke rudely to § 87(2)(b)

§ 87(2)(b) said that as he attempted to flee the incident location, multiple uniformed officers approached him so he voluntarily got onto the ground. § 87(2)(b) alleged that an officer, who he did not see and therefore could not describe, stomped on the top, back part of his head twice in a row. The stomps caused § 87(2)(b) left cheekbone to hit the ground twice, causing no injuries. Multiple officers around § 87(2)(b) while he was being arrested called him a “motherfucker.” However, he did not see which officers used profanity and therefore could not describe them.

While Sgt. Calhoun said that he was not one of the officers who handcuffed § 87(2)(b) he said that he was located approximately ten feet from § 87(2)(b) throughout the entire handcuffing process. He confirmed that he never lost eyesight of § 87(2)(b) during that time. Sgt. Calhoun said that he did not see any officer stomp on § 87(2)(b) head and did not hear any officer say the word “motherfucker” or use any other profanity. Sgt. Calhoun said that there were numerous officers at the incident location, plainclothes and uniform, when § 87(2)(b) was handcuffed and he did not remember which officers handcuffed § 87(2)(b)

Neither § 87(2)(b) nor Sgt. Calhoun could provide descriptions or names of additional officers present during this portion of the incident. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **officer(s) unidentified**.

Allegation E – Force: PO Justin Delmonico struck § 87(2)(b) **with a baton.**

§ 87(2)(b) alleged that PO Delmonico struck § 87(2)(b) in the leg with his baton. While he did not see the actual strike, § 87(2)(b) told him that had occurred. Further, § 87(2)(b) observed swelling to § 87(2)(b) right leg as they were being transported to Brooklyn Central Booking together after the incident. Multiple attempts were exhausted to schedule § 87(2)(b) but he missed two scheduled appointments without prior notification to the undersigned investigator. To date, § 87(2)(b) has not contacted the CCRB to pursue this complaint.

PO Delmonico said that § 87(2)(b) after being directed to stop, attempted to flee from the location. § 87(2)(b) had previously been seen participating in a narcotics transaction. Further, he had been inside of a vehicle in which a firearm had been thrown out of

shortly before that same vehicle had attempted to elude officers. PO Delmonico said that while § 87(2)(b) was fleeing on foot, he struck § 87(2)(b) once on the calf area of his leg, which led to the apprehension of him. PO Delmonico said that one other officer was present during the apprehension of § 87(2)(b) but he did not know who that officer was or which command that officer was assigned to. Sgt. Calhoun did not witness the apprehension of § 87(2)(b).

§ 87(2)(b) did not provide a statement to the CCRB for this case and there was no witness testimony in regards. Therefore, it is recommended that **Allegation E** be closed as **victim uncooperative**.

Pod: 5

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date